

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 17, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Betancourt v. Zest US Wholesale, Inc. 2026-01552817 Demurrer to Complaint	Defendant Zest US Wholesale, Inc.'s Demurrer to the Complaint is SUSTAINED with 30 days leave to amend. Plaintiff verified her Complaint and included the standard qualification: "The matters stated in the Verified Complaint for Damages and Demand for Jury Trial are true of my own knowledge, except as to those matters which are stated on information and belief, and as to those matters, I believe them to be true." However, Plaintiff also qualified the allegations in the introductory statement providing: "Plaintiff Breyda Betancourt alleges as follows on knowledge as to herself and her own acts, and on information and belief as to all other matters." Thus, it is uncertain as to which allegations are verified and which allegations Plaintiff asserts on information and belief. Therefore, the Plaintiff's Complaint is uncertain as to which allegations are verified and, thus, Plaintiff would be subject to impeachment should she present contrary evidence later. (See <i>Interstate Specialty Marketing, Inc. v. ICRA Sapphire, Inc.</i> (2013) 217 Cal.App.4 th 708 [the main risk of an incorrect verification is "impeachment, or even perjury"].)
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